

24STCV23205 24STCV23205

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Case Number: 24STCV23205 Hearing Date: August 13, 2026 Dept: 224

Carvajal v. BMW of North America

TENTATIVE RULING

Plaintiff's motion for attorneys' fees, costs, and expenses is DENIED WITHOUT PREJUDICE.

With respect to the OSC re Dismissal for Settlement, the Court continues that to December 16, 2026 at 8:30 a.m. Plaintiff must file her new motion by no later than August 31, 2026, otherwise the Court intends to dismiss this action at the Order to Show Cause hearing on December 16, 2026 for failure to meet this deadline.

Introduction

On September 9, 2024, Plaintiff Carolina Carvajal filed the Complaint in the instant action against BMW of North America, LLC and BMW of Sherman Oaks, alleging violations of the Song-Beverly Consumer Warranty Act arising out of a 2013 BMW X5.

On November 13, 2025, Plaintiff filed the instant Motion for Attorney Fees pursuant to Civil Code section 1794(d), seeking a total of \$45,434.86, consisting of: (1) \$36,660.00 in attorneys' fees for The Law Offices of Natan Davoodi, calculated as 52.0 hours at \$705.00 per hour; (2) a 0.2 lodestar enhancement of \$7,572.48; and (3) \$1,202.38 in costs and expenses.

No opposition has been filed. No motion to strike or tax costs has been filed.

Legal Standard

This case arises from the Song-Beverly Consumer Warranty Act. Under that Act, "any buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract," such as in this case, "may bring an action for the recovery of damages and other legal and equitable relief." (Civ. Code, § 1794, subd. (a).) "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and

expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

The lodestar method of calculation applies to a statutory award of attorney fees unless the statute provides another method. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1135.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....'" "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.)

"In determining the lodestar amount, a prevailing party generally may not recover for work on causes of action on which the party was unsuccessful" except in some cases where amounts are so intertwined that it would be impracticable to separate them out. (Mann v. Quality Old Time Service, Inc. (2006) 139 Cal.App.4th 328, 342; Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 157.) " 'Attorneys fees need not be apportioned between distinct

causes of action where plaintiff's various claims involve a common core of facts or are based on related legal theories.'"" Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 159.) "[A]ttorney fees need not be reduced for work on unsuccessful claims if the claims 'are so intertwined that it would be impracticable, if not impossible, to separate the attorney's time into compensable and noncompensable units.'" (Mann v. Quality Old Time Service, Inc. (2006) 139 Cal. App. 4th 328, 342.)

In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "'fees customarily charged by that attorney and others in the community for similar work.'" (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal. App. 4th 976, 997, overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal. 4th 644, 664.) "'A fee request that appears unreasonably inflated is a

special circumstance permitting the trial court to reduce the award or deny one

altogether.'" (Chavez v. City of L.A. (2010) 47 Cal.4th 970, 990.)

Discussion

The evidentiary support offered for the fees requested is Exhibit A to the Declaration of Natan Davoodi, described as counsel's "itemized costs, expenses and attorneys' fees actually incurred in this case." (Davoodi Decl. ¶ 68.) However, Exhibit A does not concern this case.

Exhibit A contains documents captioned to client "Val Raybukh" under Case No. 24STCV12381. The narrative time entries identify the client as "Val" throughout, and the cost schedule reflects proofs of service on "BMWNA" and "BHBMW." (Davoodi Decl., Exh. A.)

This action was filed by Carolina Carvajal under Case No. 24STCV23205. The Memorandum of Costs filed concurrently with this motion reflects service on BMW of North America, LLC and BMW of Sherman Oaks.

Further, Exhibit A totals 32.0 hours at \$705.00 per hour, or \$22,560.00. The motion requests 52.0 hours and \$36,660.00.

Section 1794(d) authorizes recovery of fees "based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Emphasis added.) A record of time expended on behalf of a different client in a different action cannot establish time incurred in this one. The court will not extrapolate

from it, reconstruct the intended record, or assume that entries bearing another client's name and another case number describe work performed here.

Accordingly, the court declines to reach the merits.

The defect appears attributable to inadvertent substitution of an exhibit during filing. Denial is accordingly without prejudice to a properly supported motion.

Conclusion

Plaintiff's motion for attorneys' fees, costs, and expenses is DENIED WITHOUT PREJUDICE. The billing records submitted as evidentiary support for the motion pertain to a different client and a different action.

Plaintiff may re-notice the motion supported by billing records for this action.

With respect to the OSC re Dismissal for Settlement, the Court continues that to December 16, 2026 at 8:30 a.m. Plaintiff must file her new motion by no later than August 31, 2026, otherwise the Court intends to dismiss this action at the Order to Show Cause hearing on December 16, 2026 for failure to meet this deadline.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.